

23STCV21664 23STCV21664

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-07-14

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Case Number: 23STCV21664 Hearing Date: July 14, 2026 Dept: 732

Royce Choi, et al. v. Fletcher Bend, LLC, et al.

Tuesday, July 14, 2026

CASE NUMBER: 23STCV24664

UNOPPOSED

Cross-Defendant

Wehmer Framing, Inc.'s Motions for Leave to File Cross-Complaint

Facts:

This is an action for construction defects. The Complaint alleges as follows.

Plaintiffs Royce Choi, Richard & Ana Hogben, David Lim, Clifford Ho & Janice Kim, Benjamin Kvalo, Sang & Olivia Lee ("Plaintiffs") purchased homes built by Defendant Fletcher Bend, LLC. (Complaint ¶¶ 3–8.) The homes were defective in their construction. (Complaint ¶¶ 10–11.)

Procedural History: Plaintiffs

filed the Complaint on September 8, 2023, alleging one cause of action for violation of building standards under Civil Code § 896.

Heyday

Development Corporation was added as a Doe Defendant on January 28, 2025.

Defendants Fletcher Bend, LLC and Heyday

Development Corporation filed a Cross-Complaint on June 24, 2025, against Cross-Defendants Acetek Roofing, Co., Inc., GM Plaster, G & M Plastering, Inc. Rick's Raingutter Service, and Wehmer Framing, Inc., alleging three causes of action:

1.

Equitable Indemnity

2.

Declaratory Relief

3.

Contribution

Cross-Defendant

Wehmer Framing, Inc. filed the present motion for leave to file cross-complaint on June 15, 2026. No opposition has been filed.

Analysis

I.

Motion for Leave to File Cross-Complaint

"A party shall file

a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint. Any other cross-complaint may be filed at any time before the court has set a date for trial." (Code Civ. Proc., § 428.50(a)–(b).) A cross-complaint filed outside either of the aforementioned times requires leave of court, which may be granted "in the interest of justice at any time during the court of the action." (Code Civ. Proc., § 428.50(c).)

A party who fails to plead a cause of action

subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such

cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action.

(Code Civ. Proc., § 426.50.) Leave to file a cross-complaint may also be granted “in the interest of justice at any time during the course of the action.” (Code Civ. Proc. § 428.50, subd. (c).)

Cross-Defendant

Wehmer Framing, Inc. (“WFI”) seeks leave to file a cross-complaint against another subcontractor in this construction-defect case, G&M Plastering Inc. (Motion at p. 5.) WFI premises the proposed cross-complaint upon new theories of liability being asserted against it by Cross-Complainants Fletcher Bend LLC and Heyday Development Corporation for defects in walls leading to stucco cracking. (Motion at p. 4.) WFI’s counsel claims to have first learned of this theory on May 14, 2026. (Stewart Decl. ¶ 7.)

The proposed cross-complaint for indemnity and contribution against G&M Plastering, Inc. arises out of the same transaction as that alleged in the original Complaint. Per the declaration of WFI’s counsel, the present motion was presented promptly following introduction of facts disclosing the theory of liability upon which the proposed cross-complaint is based. No opposition to the motion has been filed. Trial is not scheduled in this action, and a trial setting conference is set for October 5, 2026.

The motion is therefore GRANTED.

Superior Court of California

County of Los Angeles

Department 732

ROYCE
CHOI, et al.,

Plaintiffs

v.

FLETCH BEND, LLC, et al.,

Defendants.

AND RELATED CROSS-ACTIONS

Case No.:

23STCV21664

Hearing Date: July 14, 2026

[TENTATIVE] RULING RE:

Cross-Defendant Wehmer Framing, Inc.'s Motions for
Leave to File Cross-Complaint.

Cross-Defendant Wehmer Framing, Inc.'s
Motions for
Leave to File Cross-Complaint is GRANTED.

Cross-Defendant to give notice.

Dated: July 14, 2026

Hon.

Richard S. Kemalyan

Judge
of the Superior Court